

Form No: HCJD/C-121

ORDER SHEET

**IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT**

Civil Revision No.153 of 2026

**Muhammad Waseem Akhtar Vs. Addl. District Judge, etc.
Ali Naz Qureshi**

S.No. of Order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary
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29.01.2026. Syed Muhammad Waseem Akhtar Ali Naz Qureshi, Advocate-petitioner in person.
Mr. Musleh ud Din Khan and Malik Muhammad Bakhsh Khaki, Assistant Advocates General Punjab, Muhammad Azhar Khan Mughal, Ahmad Hassan Khan Khichi and Dr. Muhammad Azeem Raja, Advocates.
Rana Ghulam Hussain, Assistant Attorney General for Pakistan.

The petitioner, who himself is an advocate and has appeared in person, is aggrieved of order passed by the Civil Court and judgment passed by the Appellate Court dated 04.06.2025 and 28.10.2025 respectively, resulting in concurrent dismissal of the disobedience petition filed by him against the respondents for initiating proceedings against them for committing contempt of court by disobeying the injunctive order dated 22.05.2017 passed by the learned trial court. Through the said injunctive order, the learned trial court while issuing notices on the application for temporary injunctions filed by the petitioner had directed the respondents not to adopt any illegal and coercive measures against the petitioner in respect of the suit property. It is claimed that despite the said order the respondents have started raising construction over the suit property resulting in filing of the aforementioned petition, which has concurrently been dismissed without appreciating the real controversy in issue and seeks setting aside of the impugned orders.

2. In order to appreciate the grievance of the petitioner, operative part of the said injunctive order dated 22.05.2017 is reproduced hereunder:-

“Along with main suit plaintiff has filed an application for temporary injunction which is duly supported by an affidavit. As per contention of plaintiff, he purchased 01-Kanal land from the defendants whereupon he constructed 05-shops and on remaining portion he constructed the house. However, the plaintiff has neither placed on record his proof of ownership nor any agreement regarding purchase of suit property but as per contention of plaintiff he is in possession of the suit property and defendants have demolished his structure raised over the suit property. The contentions raised by the plaintiff needs consideration, therefore, the defendants are directed not adopt any illegal coercive measures against the plaintiff in respect of the suit property. However, this order shall not affect any other legal /judicial proceedings”.
(emphasis supplied).

3. Subsequent to the aforementioned injunctive order, petitioner filed an application complaining of disobedience of said order by mentioning that respondents are raising construction on the premises which application has concurrently been dismissed by both the courts below vide orders dated 04.06.2025 and 28.10.2025. In the operative portion of the said orders passed by both the courts below, respectively it has been observed as under:-

Order of the trial court:

“It is evident from the injunctive order dated 22.05.2017 that respondents were never restrained from raising constructions in the disputed property and admittedly no allegations of illegal and coercive measures used by the respondents against petitioner have been alleged. In view of what has been discussed above, the instant disobedience petition of the petitioner is dismissed summarily and there is no need to record evidence”.

Order of the appellate court:

“Minute scanning of the injunctive order of this court dated 22.05.2017 in suit of the appellant for specific performance of agreement to sell reveals that respondents were directed not to adopt any illegal and coercive measures against the appellant in respect of disputed property. It is evident from the injunctive order dated 22.05.2017 that respondents were never restrained from raising construction in the disputed property and admittedly no allegation of illegal and coercive measures used by the respondents against the appellant have been alleged.

No violation has been pointed out except oral allegation leveled by the applicant. Relief under order XXXIX Rule 1,2 CPC is equitable in nature when the applicant/appellant has remained failed to establish

prima facie arguable case in his favour, under the domain of order XXXIX Rule 1, 2 CPC. No fruitful purpose would be served to initiate any penal action against the respondents under the garb of contempt petition. It is also evident from the record that the previous litigations between the parties initiated by the appellant were unsuccessful.

For what has been discussed above, this court is of the considered view that the findings of learned trial court vide impugned judgment & decree dated 04.06.2025 do not suffer from any illegality or material irregularity. Consequently, instant appeal is hereby dismissed.”

4. It has vehemently been claimed that the observations recorded by both the courts are against the record and impugned orders are liable to be set aside and the respondents are to be proceeded against for disobeying the injunctive order passed by the civil court for the reason that despite direction issued to the respondents not to adopt any illegal coercive measures against the petitioner/plaintiff in respect of the suit property, they have started raising construction over the same.

5. There is no cavil to the proposition that the civil court previously under the provisions of erstwhile Rule 2(3) of Order XXXIX CPC, which has been deleted and now under subsequently added Rule 2C of the said Order by Notification No. 65/Legislation/XI-Y-26 dated 26.03.2007 by the Lahore High Court under Section 122 CPC published in PLD 2004-2009 Supp. Pb. St. 326 is empowered to proceed against a party for disobeying its orders. Both the aforesaid rules as existed prior and subsequent to repeal and addition have been enacted for the purpose of ensuring the compliance of court's orders and providing enforcement machinery with powers vested in the court which are penal in nature and the said rules are reproduced below for reference:

‘2(3). In case of disobedience, or of breach of any such terms, the Court granting an injunction may order the property of the person guilty of such disobedience or breach to be attached, and may also order such person to be detained in prison for a term not exceeding six months unless in the meantime the Court directs his release.’

‘2C. Consequence of disobedience of breach of injunction.--- (1) In the case of disobedience of any

injunction granted or other order made under rule 1 or rule 2 or breach of any of the terms on which the injunction was granted or the order made, the Court granting the injunction or making the order, or any Court to which suit or proceeding is transferred, may order the property of person guilty of such disobedience or breach to be attached, and may also order such person to be detained in the prison for a term not exceeding three months, unless in the meanwhile the Court directs his release.'

Perusal of the aforementioned provisions shows that the both are similar, '*in pari materia*' and provide similar remedies and consequences hence interpretation placed on one provision i.e. rule 2(3) can be placed after its repeal on the other provision i.e. Rule 2-C, which has been added in its place.

6. Furthermore, it is also settled that once an order had been passed with jurisdiction, it was duty of all persons to obey same so long as it existed and the person found guilty of breach of injunctive order was liable to be proceeded against and could be held liable for imprisonment unless it is found that he had no intention to defy the authority of the court by disobeying its orders. Reliance is placed on **Malik Shah Abdul Waheed versus Karachi Metropolitan Corporation and 4 others** (1989 CLC 440 Karachi).

7. The question that arises in this case is whether the injunctive order has actually been violated by the respondents for the court to initiate proceedings against them for disobedience of its orders especially when both the courts below have observed that the trial court while issuing direction to the respondents not to adopt any illegal coercive measures against the petitioner in respect of disputed property, they were not restrained from raising construction over the suit property, whereas the petitioner is interpreting the said order as restraint against respondents for raising further construction over the suit property, as the same, according to him amounts to illegal coercive measure against the petitioner.

In somewhat similar situation in case reported as **Fazal Karim versus Fateh Begum and 6 others** (2004 CLC 365 Lahore) wherein in the pending suit, an application seeking

temporary injunction filed by the plaintiff was disposed of with orders restraining the defendant from alienating the suit property but allowing him to complete his construction by erecting lintel at his own risk and cost, which order was suspended by the Appellate Court on an appeal filed by the plaintiff/appellant and during the pendency of appeal, the appellant/plaintiff filed an application under Order XXXIX Rule 2(3) CPC for initiating proceedings against the defendant and other respondents for disobedience of order passed by the appellate court on the ground that despite being aware of the suspension order passed by the appellate court defendant with help of others had intentionally completed his construction work and thus had violated order exposing all of them to penal action and consequences, which allegation was denied by the defendant/respondent whereupon proceedings were initiated by the learned appellate court, which passed penal orders against the defendant/respondent requiring him to demolish the construction and all the respondents were ordered to pay fine of Rs. 1,000/- each to be deposited in the treasury within one week. The defendant approached the High Court by filing 'First Appeal Against Order' against the same, wherein it was held by this Court that the appellate court by its order having suspended permissive/injunctive order passed by the trial court had not restrained the defendant/respondent from raising construction over the suit property, therefore, no injunctive order was in the field and no question of proceeding against him under the provisions of Rule 2(3) of Order XXXIX of CPC was made out as in the absence of any binding order, proceedings under Rule 2(3) of Order XXXIX of CPC against the defendants were not warranted and the order directing demolition of construction and imposing fine on the defendant and other respondents was set-aside as not sustainable at law.

8. As already noted above provisions of aforementioned rules are penal in nature and were always required to be applied with due care and caution, especially when the question of sentence of imprisonment and liberty of a citizen was involved, which duty would be extremely aggravated

when someone was being punished with imprisonment in the proceedings arising from civil matters. Though the penalty of sentence imposable under Order XXXIX, Rule 2(3) CPC, now replaced by Rule 2-C, had been codified in the Code of Civil Procedure, but since it had a penal effect, it was of semi criminal nature, because ultimately the guilty person was to undergo the sentence of imprisonment. Therefore, before convicting and sentencing someone, the civil courts must, besides the violation of any order, satisfy itself that the violator of the stay order had intention to challenge the authority of the court and it was not an act under some misunderstanding or misconception. Existence of *mens rea* at the part of violator of status quo order was essentially required to be explored and proceedings being of criminal nature were required to be conducted in as nearly as possible with the mode prescribed for dispensing justice in a criminal case, failing which order of conviction and sentence would be regarded as untenable. Reliance in this behalf has been placed on principles discussed by the Peshawar High Court in case titled **Abdul Hayee versus Faizullah** (2009 CLC 959).

9. It is also important to note here that for proceeding against a party for disobedience of stay orders/injunctive orders of court, it has also to be seen that whether at the time when alleged violation took place, the court orders were still in existence and holding the field or not and in case it is found out that there was no injunctive order in the field at the time of the alleged contempt or the previously granted injunctive order had not been further extended and had ceased to have effect due to any reason, the alleged violator cannot be proceeded against for disobedience of such a non-existent order and punished. Reliance in this behalf has been placed on principles discussed by the Islamabad High Court in case titled **Aftab Ahmad Khan and another versus Dilawar Khan and 2 others** (2024 MLD 316).

10. The crux of the principles laid down in the aforementioned judgments is that once an order had been passed with jurisdiction, it was duty of all persons to obey same so long as it existed and the person found guilty of

breach of injunctive order was liable to be proceeded against and could be held liable for imprisonment which is subject to the exceptions that either the alleged violation was not covered under the injunctive order or the alleged violator had no intention to defy the authority of the court by disobeying its orders.

11. Keeping in view the facts of the instant case and principles of law laid down in the afore mentioned judgments, it is noted that the respondents had been directed not to adopt any illegal coercive measures against the petitioner/plaintiff in respect of the suit property whereas no specific order had been passed for restraining the respondents from raising construction over the suit property. It is important to note here that the injunctive order, disobedience of which is complained of by the complainant, should in categorical clear terms restrain the performance of a particular act for making the alleged contemnor liable to be proceeded against for such violation and the said violation should not be such which has to be brought within the mandate of injunctive order by stretching its meaning to a situation which is not expressly mentioned into the same, hence raising of construction over the suit property, *prima facie*, does not constitute an act of disobedience of aforementioned court's orders and no reason for proceeding against the respondents under the provision of Rule 2-C of Order XXXIX CPC is made out and for this reason both the courts below by concurrently observing the same have rightly declined to proceed against the respondents for allegedly disobeying of the orders of the courts. The said observations are findings of fact recorded by both the courts below concurrently on the basis of available record and the same do not suffer from illegality or jurisdictional defect, misreading and non-reading of the record to warrant interference by this Court, consequently this petition at this stage being without any force is **dismissed**. However, it is observed that if ultimately the trial court reaches a conclusion on completion of trial that any portion of the order has not been complied with, it may proceed further in the matter on

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its own merits in accordance with law without being influenced by any observation recorded in this order.

(MUZAMIL AKHTAR SHABIR)
JUDGE

Iftikhar/naveed

APPROVED FOR REPORTING: